Required Forms Packet
with No Children

Uncontested Joint Divorce With No Children
Required Forms Packet Effective in all NYS Counties as of 3/1/26

If there are children under 21, use the Uncontested Joint Divorce With Children Forms Packet

See the Information Booklet (JD-1) Effective in all NYS Counties (rev.3/1/26 for instructions, important notices, and help.

To Start the Case:

1. Summons with Notice and Combined Notice of Appearance (JD-2) (1/15/25)
2. Joint Affidavit of Facts and Agreement with No Children (JD-5) (3/1/26)
3. Combined Findings of Fact, Conclusions of Law, and Judgment of Divorce with No Children (JD-6) (1/15/25)
4. Note of Issue
5. Request for Judicial Intervention (RJI) (UD-13) (12/16/24)
6. Certificate of Dissolution of Marriage (DOH 2168)
7. Notification Letter or Postcard (2 copies and 2 stamped envelopes)

** Additional forms may be required depending on the circumstances. **
See the Uncontested Joint Divorce With No Children Forms Appendix Effective in all NYS Counties as of 3/1/26.

Forms for After the Judgment Is Signed:

1. Notice of Entry
2. Affirmation of Service by Mail of Judgment of Divorce and Notice of Entry 12/23/25
3. Affirmation of Service by Mail 12/23/25
4. Affirmation of Service by Personal Delivery 12/23/25

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF _____

Index Nø.: _____

Summons filed on: _____

Venue: Case filed in _____County because: _____

_____
Plaintiff / Spouse 1,

– and –

_____
Defendant / Spouse 2.

SUMMONS WITH NOTICE AND COMBINED NOTICE OF APPEARANCE Eff. in all NYS Counties 1/15/25

ACTION FOR DIVORCE

Plaintiff/Spouse 1 asks the Defendant/Spouse 2 to appear in this action.

Defendant/Spouse 2 agrees and appears in this action.

Spouse 1 and Spouse 2:

- signed the Joint Affirmation of Facts and Agreement with children (Form JD-3) or without children (Form JD-5) in support of this action.
- read and understood the Joint Divorce Information Booklet (Form JD-1) that contains:
  - Notice of Automatic Orders
  - Notice of Maintenance Guideline
  - Child Support Standards Act Chart
  - Notice Concerning Continuation of Health Care Coverage
- submit to the court with this Summons:
  - Joint Affirmation of Facts and Agreement with children (Form JD-3) or without children (Form JD-5)
  - Combined Findings of Fact, Conclusions of Law, and Judgment of Divorce with children (Form JD-4) or without children (Form JD-6)
  - Note of Issue and other Forms

_____ County is chosen as the place where this action will be decided (*venue*) because:

- ☐ Spouse 1 lives in this county at _____.
- ☐ Spouse 2 lives in this county at _____.
- ☐ Other reason: _____.

The relief asked for is judgment of absolute divorce to end (dissolve) the marriage between Spouse 1 and Spouse 2 on the grounds of irretrievable breakdown *DRL §170(7)*.

The ancillary or other relief asked for or waived is: (*check all that apply*)

- ☐ No ancillary or other relief is asked for. Maintenance under the Maintenance Guidelines Act and distribution of marital property is waived.

  OR
- ☐ Maintenance under the Maintenance Guidelines Act is waived
- ☐ Distribution of marital property is waived

  AND
- ☐ Distribution of marital property
- ☐ Maintenance (money paid from one spouse to the other after the divorce)
- ☐ Division of retirement accounts and/or pensions
- ☐ Child support (payments made to financially support a child until the child turns 21 years)
- ☐ Custody
- ☐ Visitation
- ☐ Attorney and/or Expert fees
- ☐ Use of former last name before marriage
- ☐ Continue Order of Protection
- ☐ Possession of the marital home
- ☐ Continue Court Orders
- ☐ Other relief _____

AND any other relief the court deems fit and proper.

Dated: _____

_____
☐ Plaintiff/Spouse 1
☐ Attorney for Plaintiff
Phone no.:_____
Address:
_____
_____
_____

The Defendant / Spouse 2 appears in this action and has also signed the Joint Affirmation. Spouse 2 asks for the same ancillary relief as listed in the Summons and waives any statutory time periods to respond.

Dated: _____

_____
☐ Defendant/Spouse 2
☐ Attorney for Defendant
Phone no.:_____
Address:
_____
_____
_____

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF _____

Index No.: _____

_____
Plaintiff / Spouse 1,

– and –

_____
Defendant / Spouse 2.

JOINT AFFIRMATION OF FACTS AND AGREEMENT
with no children

STATE OF _____}
ss:
COUNTY OF _____}
County of Spouse 1

COUNTY OF _____}
County of Spouse 2

We file this Joint Affirmation of Facts and Agreement together for an uncontested divorce and ask for this case to be placed on the uncontested divorce calendar immediately. Being duly sworn, we affirm the truth of the facts stated.

BACKGROUND AND JURISDICTION

A. Jurisdiction. Jurisdiction gives the court the power to make decisions and judgments in this case.

1. We are both over 18 years old.
2. We consent to the jurisdiction of this court and we appear in this action.
3. We read and understood the Joint Divorce Information Booklet (Form JD-1). The Information Booklet contains:
    - Notice of Automatic Orders
    - Notice of Maintenance Guideline
    - Child Support Standards Act Chart
    - Notice Concerning Continuation of Health Care Coverage
4. We waive (give up) the right to:
    - serve and file the Complaint and Answer, and
    - wait the 40-day period to place this case on the calendar, and
    - service of a copy of the Notice of Settlement and all other papers in the action, except for service of the Judgment with Notice of Entry.

5. We have not been threatened or pressured into signing this Joint Affirmation of Facts and Agreement. We understand that by submitting this Joint Affirmation we are asking the court to end our marriage.
6. Residency. To file for a divorce, you must be a resident of the state.
   - ❑ One of us has lived in New York State for the past two years.

     OR

   - ❑ One of us has lived in New York State for the past one year and is a resident today, AND
     - ❑ we were married in New York. OR
     - ❑ we lived in New York while we were married.

     OR

   - ❑ One of us has lived in New York State for the past one year and the breakdown of our marriage happened in New York.

     OR

   - ❑ Both of us live in New York State and the breakdown of our marriage happened in New York.

B. About Spouse 1.

1. My name is: _____.
2. I live at _____.
   Don't complete if there is an Address Confidentiality Order
3. My social security number is _____.
4. I □ am □ am not on public assistance.

C. About Spouse 2.

1. My name is _____.
2. I live at _____.
   Don't complete if there is an Address Confidentiality Order
3. My social security number is _____.
4. I □ am □ am not on public assistance.

D. Children of the Spouses. We have no children under 21 years old who were born before or during the marriage or adopted by both of us during the marriage.

E. Military.

- ❑ Neither of us is in the military. **OR**
- ❑ At least one of us is in the military: □ Spouse 1 and/or □ Spouse 2
  We are aware that there are special rules for divorces for active service member on duty under the Soldiers' and Sailors' Civil Relief Act, like the divorce case can be postponed while one of us is on duty. We give consent that this case be put

on the Uncontested Matrimonial calendar right away and waive any right either of us may have under the act.

F. About the Marriage.

1. We were married on _____ in _____.
   date city, town or village, state, country
2. We were married:
   - ❑ in a civil ceremony. **OR**
   - ❑ in a religious ceremony performed by a person like a minister or clergyman of any religion, or by a leader of the Society for Ethical Culture, **AND WE SWEAR**
     - ❑ To the best of our knowledge, we each have taken or will take before entry of the Judgment all steps solely within our power so that the other may remarry after our divorce. **OR**
     - ❑ We waive the requirement that any barriers to remarriage be removed.

G. Grounds for Divorce. This is the legal reason for the divorce. We swear that:

1. The grounds for divorce is irretrievable breakdown DRL § 170(7).
2. Our marriage has been broken for more than six months.

H. Pending or Prior Cases. There is no judgment of divorce and no other divorce case between us in this court or any other court anywhere.

HEALTH INSURANCE

1. We will not take each other off any existing medical, hospital and dental insurance coverage and must keep the coverage we have current until the divorce is final.
2. We know that once we are divorced, we may no longer be allowed to get health coverage from each other's health insurance plans.
3. We know that we will be required to get our own health insurance if we are no longer eligible for coverage under each other's health insurance plan.
4. We know that we may be able to get our own insurance for a limited time through a COBRA option.
5. Our health insurance plans are from:

   Spouse 1's Group Health Plan: _____

   Address: _____

   Identification or plan number: _____

   Plan Administrator: _____

Spouse 2's Group Health Plan: _____

Address: _____

Identification or plan number: _____

Plan Administrator: _____

OUR INCOME

Our income and deductions from last year are as follows:

	Spouse 1	Spouse 2
A. Gross total income (before taxes)		
B. New York City or Yonkers taxes paid		
C. (FICA) Social Security taxes paid		
D. Medicare taxes paid		
E. Court ordered maintenance paid to a different spouse		
F. Court ordered child support paid for children not from this marriage		
G. Add: B + C + D + E + F		
H. Subtract: A - G		
Net income	$	$

MAINTENANCE

Maintenance is money paid from one spouse to the other after a divorce. The amount of maintenance and how long the support will be paid depends, by law, on a math formula based on income and the length of the marriage. (See the Joint Divorce Information Booklet (JD-1) for the math formula and examples or to calculate what the amount of maintenance would be required under the law, go to the Post-Divorce Maintenance Calculator available at http://ww2.nycourts.gov/divorce/MaintenanceChildSupportTools.shtml.)

❑ Neither of us is asking for maintenance. The spouse with the lower income waives maintenance under the Maintenance Guideline Act. (Skip to "Marital Home.")

OR

❑ One of us is asking for maintenance. We have reviewed Maintenance Guideline Act, the amount of maintenance that ☐ Spouse 1 or ☐ Spouse 2, the spouse with the

higher income, would be required to pay would be $_____, up to the cap of $241,000 and any deviation agreed to by the parties.

As written in the Maintenance Guideline Act, the Advisory period of maintenance is:

If you have been married for…	Then maintenance would be payable for…
0 to 15 years	15% - 30% of the length of the marriage
More than 15 years to 20 years	30% - 40% of the length of the marriage
More than 20 years	35% - 50% of the length of the marriage

We have been married for _____years. The Advisory period of maintenance would be _____years and _____months to _____years and _____months.

❑ We have a written agreement for maintenance. The Agreement is attached.

1. The agreement is dated _____.
2. □ Spouse 1 or □ Spouse 2 will get maintenance from the other spouse.
3. Maintenance will be $_____on the _____day of □ every week □ every two weeks □ every month □ Other: _____
4. Maintenance will be paid for _____years and _____months.

OR

❑ We do not have a separate written agreement, but we agree that:

1. □ Spouse 1 or □ Spouse 2 will get maintenance from the other spouse.
2. Maintenance will be $_____□ every week □ every two weeks □ every month.
3. Maintenance payments will start on _____and end on _____.
4. The payments will be □ by direct payment or □ by an Income Deduction Order.

MARITAL HOME

The marital home is the house or apartment where a married couple lives together. One spouse can ask the court for "exclusive use and occupancy" of the home for a period of time. This means that one spouse is given the right to stay in the home, but this does not mean that the other spouse loses any rights to the property.

❑ Not applicable. **OR**

❑ We have agreed that □ Spouse 1 or □ Spouse 2 will have exclusive occupancy of the marital home located at _____,

- ❑ until _____. **OR**
- ❑ as follows: _____.

MARITAL PROPERTY

Marital property is property and cash obtained during the marriage until the date this is filed. This can include each person's income, property bought with that income, property bought while married, and retirement benefits earned during the marriage. In most cases, inherited property is not part of marital property.

A. Equitable Distribution. When a couple divorces, marital property is divided. This is called equitable distribution. It does not always mean an equal property division, but one that is fair, considering what each person brought to the marriage and what each person will need after the divorce.

- ❑ We have already divided our property and are not seeking equitable distribution. **OR**
- ❑ We have a separate written Agreement. The Agreement is attached. **OR**
- ❑ We don't have a separate written agreement, but we agree that:

_____

_____

_____

B. Real Estate. Real estate, like a house or apartment, bought during the marriage is part of marital property. We are aware that there are other documents separate from the divorce required to complete the transfer of the property.

- ❑ Not applicable. **OR**
- ❑ Spouse 1 shall transfer title to the real estate or co-op shares to Spouse 2. We understand that there are other documents required to complete the transfer of the property.

  Address of property: _____
- ❑ Spouse 2 shall transfer title to the real estate or co-op shares to Spouse 1. We understand that there are other documents required to complete the transfer of the property.

  Address of property: _____

C. Pensions and Retirement Accounts. If a pension or retirement plan were earned during a marriage, it is considered an asset and marital property.

- ❑ A Qualified Domestic Relations Order (QDRO) is attached or will be submitted after the Judgment is entered. **OR**
- ❑ We have a separate written agreement. The agreement is attached. **OR**
- ❑ We waive all rights to each other's pension and retirement benefits.

D. Debt and Liabilities.

- ❑ Not applicable. **OR**
- ❑ We have a separate written agreement. The Agreement is attached. **OR**
- ❑ We don't have a separate written agreement, but we agree that:

_____

_____

_____

NAME CHANGE

If you changed your last name when you got married, you can change it back to a last name you used before the marriage. This is up to you.

- ❑ Spouse 1 wants to use a former last name.

  Former last name: _____
- ❑ Spouse 2 wants to use a former last name.

  Former last name: _____

LAWYER AND EXPERT'S FEES

The lawyer's fee is the payment to an attorney for legal services done for a client. The expert's fee is the payment to a person or company who has specialized knowledge on a specific topic like property, pension benefits, finance, or psychology. The expert is hired to help you decide the terms of your divorce.

- ❑ We will each pay our own lawyer and expert's fees, if any. **OR**
- ❑ We have agreed that □ Spouse 1 or □ Spouse 2 will pay $_____for the other spouse's lawyer's fees. We have agreed that experts' fees will be paid as follows: _____

  _____

CONCLUSION

A proposed Combined Findings of Fact, Conclusions of Law, and Judgment of Divorce is attached.

We certify that all the papers that we have seen, filed or submitted to the court in this divorce action are not frivolous as defined in the subsection (c) of Section 130-1.1 of the Rules of the Chief Administrator of the Courts.

We agree that all ancillary (other) relief is resolved by this Joint Affirmation of Facts and Agreement, any Settlement Agreement attached, and by any additional attached pages of ancillary relief requested and agreed to by both of us.

WHEREFORE, we agree to a judgment dissolving the marriage between us on the

grounds of Irretrievable Breakdown in the Marital Relationship and any other relief the court deems fit and proper.

STOP! Take this document to a Notary Public BEFORE signing it

VERIFICATION AND AFFIRMATION

I, [Print name of Spouse 1] _____, affirm this _____day of, _____,_____under the penalties of perjury, under the laws of New York, which may include a fine or imprisonment, that the foregoing is true, except as to matters alleged on information and belief and as to those matters I believe it to be true, and I understand that this document may be filed in an action or proceeding in a court of law.
I understand that Spouse 2 (Defendant) is relying on my financial statements in this Affirmation.

Dated: _____ _____
Signature of Spouse 1 (Plaintiff)

STATE OF _____}
ss:
COUNTY OF _____}

*On _____, before me, personally appeared _____,
Date Name of Spouse 1 (Plaintiff)

personally known to me, a Notary Public in and for the State, or proved to me on the basis of satisfactory evidence to be the individual whose name is subscribed to the within instrument and acknowledged to me that he/she executed the same in his/her capacity, and that by his/her signature on the instrument, the individual executed the instrument.

_____
NOTARY PUBLIC

*Despite amendment of CPLR 2106 to permit civil litigants to file affirmations instead of affidavits, this form is a matrimonial agreement as well as an affidavit (now affirmation); and should still be signed before a notary public to comply with DRL 236(B)(3) (matrimonial agreements must be acknowledged like a deed to be recorded), which statute remains in effect.

VERIFICATION AND AFFIRMATION

I, [Print name of Spouse 2) _____, affirm this _____day of, _____,_____under the penalties of perjury, under the laws of New York, which may include a fine or imprisonment, that the foregoing is true, except as to matters alleged on information and belief and as to those matters I believe it to be true, and I understand that this document may be filed in an action or proceeding in a court of law.
I understand that Spouse 1 (Plaintiff) is relying on my financial statements in this Affirmation.

Dated: _____ _____
Signature of Spouse 2 (Defendant)

STATE OF _____}
ss:
COUNTY OF _____}

*On _____, before me, personally appeared _____,
Date Name of Spouse 2 (Defendant)

personally known to me, a Notary Public in and for the State, or proved to me on the basis of satisfactory evidence to be the individual whose name is subscribed to the within instrument and acknowledged to me that he/she executed the same in his/her capacity, and that by his/her signature on the instrument, the individual executed the instrument.

_____
NOTARY PUBLIC

*Despite amendment of CPLR 2106 to permit civil litigants to file affirmations instead of affidavits, this form is a matrimonial agreement as well as an affidavit (now affirmation); and should still be signed before a notary public to comply with DRL 236(B)(3) (matrimonial agreements must be acknowledged like a deed to be recorded), which statute remains in effect.

New York State Supreme Court at the Courthouse, _____ County, on _____.

Present: Hon._____
☐ Justice ☐ JHO ☐ Referee

Index No.: _____

Calendar No.:_____

_____
Plaintiff / Spouse 1,

– and –

_____
Defendant / Spouse 2.

COMBINED FINDINGS OF FACT, CONCLUSIONS OF LAW, AND JUDGMENT OF DIVORCE
with no children

This case came before the Court without a hearing on Spouse 1 and Spouse 2's Joint Affidavit of Facts and Agreement for an uncontested divorce.

Spouse 1 was: ☐ represented by an attorney OR ☐ unrepresented.

Spouse 2 was: ☐ represented by an attorney OR ☐ unrepresented.

The Court, having read and considered the submitted papers, makes the following Finding of Fact, Conclusions of Law, and Judgment of Divorce.

FINDINGS OF FACT

BACKGROUND AND JURISDICTION

1. This action was started by filing the Summons with Notice and Combined Notice of Appearance and the Joint Affidavit of Facts and Agreement with the County Clerk on _____. Spouse 1 and Spouse 2 agree and appear in this action. The spouses waived the right to serve and file the Complaint and Answer, wait the 40-day period to place this case on the uncontested calendar, and service of the Notice of Settlement and all other papers in the action except service of this Combined Findings of Fact, Conclusions of Law, and Judgment of Divorce with Notice of Entry.
2. The submitted papers prove DRL § 170(7) Irretrievable Breakdown in Relationship for at Least Six Months as the grounds for divorce.

3. Spouse 1 and Spouse 2 were both eighteen (18) years of age or over when this action was started.
4. Spouse 1's address is _____ and social security number is _____.
   Spouse 2's address is _____ and social security number is _____.
5. Residency.
   ☐ At least one of the spouses has lived in New York State for the past two years. **OR**
   ☐ One of the spouses has lived in New York State for the past one year and is a resident today and the marriage ceremony was performed in New York or the spouses have lived in New York as a married couple. **OR**
   ☐ One of the spouses has lived in New York State for the past one year and the breakdown of the marriage happened in New York. **OR**
   ☐ Both of the spouses live in New York State and the breakdown of the marriage happened in New York.
6. There is no judgment of divorce and no other divorce case between the spouses in this court or any other court anywhere.
7. Military.
   ☐ Neither spouse is in the military service of the United States of America, the State of New York, or any other state. **OR**
   ☐ At least one of the spouses is in the military: ☐ Spouse 1 and/or ☐ Spouse 2 and waives any rights under the Soldiers' and Sailors' Civil Relief Act.
8. The spouses married on _____ in _____.
   Date — city, town or village, state, country
9. The spouses were married in:
   ☐ a civil ceremony. **OR**
   ☐ a religious ceremony performed by a person like a minister or clergyman of any religions, or by a leader of the Society for Ethical Culture, **AND**
      ☐ The spouses have taken all steps solely within their power to remove all barriers to the other spouse's remarriage following divorce. DRL § 253. **OR**

☐ The spouses waived the requirement that any barriers to remarriage be removed.

HEALTH INSURANCE

10. Each spouse has been provided the Notice Concerning Continuation of Health Care Coverage as required by DRL § 255(1) **AND**

☐ There are no health plans available to the spouses through their employment.

OR

☐ Spouse 1 and Spouse 2 are covered by the following group health plans through their employment:

Spouse 1's Group Health Plan: _____

Address: _____

Identification or plan number: _____

Plan Administrator: _____

Spouse 2's Group Health Plan: _____

Address: _____

Identification or plan number: _____

Plan Administrator: _____

11. As required by DRL § 255(2), the Joint Affidavit of Facts and Agreement or the Stipulation of Settlement, if any, or an Addendum contain the following statements:

- The spouses know that they will no longer be covered by the other spouse's health insurance plan.
- Each spouse knows that they will be responsible for their own health insurance coverage.
- The spouses know that they may be able to get coverage through a COBRA option for a limited time.

MAINTENANCE

12. Each spouse has been provided the Notice of Maintenance Guideline as required by DRL § 236(B)(6) **AND**

☐ No maintenance was awarded because:

☐ Neither spouse is asking for maintenance. **OR**

☐ The guideline award of maintenance under the Maintenance Guideline Law, if applicable, was zero.

OR

☐ The spouses have agreed in ☐ the Joint Affidavit of Facts and Agreement OR ☐ a written agreement/stipulation dated _____ that:

- ☐ Spouse 1 or ☐ Spouse 2 will pay maintenance to ☐ Spouse 1 or ☐ Spouse 2.
- Maintenance will be $_____ ☐ every week ☐ every two weeks ☐ every month ☐ Other:_____ for the period of time specified in the agreement.
- The Joint Affidavit of Facts and Agreement or agreement was validly executed and the terms were fair and reasonable at the time the agreement for maintenance was made. At the time the judgment is signed, the terms are not unconscionable. The agreement follows the requirements of DRL § 236(B)(3) and GOB § 5-311.

CHILDREN OF THE SPOUSES

"Children of the spouses" are children who were born before or during the marriage or adopted by both spouses during the marriage who have not yet turned 21 years old.

13. There are no children of the spouses.

MARITAL PROPERTY

14. ☐ Equitable distribution is not an issue. **OR**

☐ The property is divided according to ☐ the Joint Affidavit of Facts and Agreement or ☐ a separate Settlement Agreement

LAWYER AND EXPERT'S FEES

15. The Judgment of Divorce incorporates all ancillary issues, including the payment of counsel and experts' fees and expenses which issues were settled by written settlement or separation agreement or in the Joint Affidavit of Facts and Agreement.

CONCLUSIONS OF LAW

1. Residency as required by DRL § 230 has been satisfied.
2. The requirements of DRL § 255 have been satisfied.
3. The requirements of DRL § 240 1 (a) including the Records Checking Requirements in DRL § 240 1 (a-1) have been satisfied.
4. The requirements of DRL § 240(1-b) have been satisfied.
5. The requirements of DRL § 236(B)(2)(b) have been satisfied.
6. The requirements of DRL § 236(B)(6) have been satisfied.
7. Since DRL § 170(7) is the grounds alleged,
    - all economic issues of equitable distribution of marital property,
    - the payment or waiver of spousal support,
    - the payment of child support,
    - the payment of counsel and experts' fees and expenses, as well as
    - custody and visitation (parenting time) with the minor children of the marriage

    have been resolved by the spouses and incorporated into the judgment of divorce.
8. The spouses are entitled to a judgment of divorce under DRL § 170(7).

JUDGMENT OF DIVORCE

IT IS ORDERED AND ADJUDGED as follows:

1. A judgment of divorce on the grounds of Irretrievable Breakdown in the Marital Relationship according to DRL § 170(7) is granted to Spouse 1 and Spouse 2.
2. Maintenance.
   ☐ No maintenance was awarded. **OR**
   ☐ Maintenance is awarded as agreed by the spouses.
   - ☐ Spouse 1 or ☐ Spouse 2 will pay maintenance to ☐ Spouse 1 or ☐ Spouse 2
   - Maintenance will be $_____ ☐ every week ☐ every two weeks ☐ every month ☐ Other: _____ for the period of time specified in the Findings of Fact.
   - If maintenance is terminated, then subject to the terms of DRL § 240(1-b), the amount of child support payable, if any, shall be adjusted without prejudice, to either party's right to seek a modification under DRL § 236 B (9)(2).
3. ☐ Exclusive Occupancy of the Marital Home. ☐ Spouse 1 or ☐ Spouse 2 shall have exclusive occupancy of the marital home located at

   _____

   ☐ until _____ **OR**
   ☐ as follows: _____.

4. ☐ The spouses shall duly execute all documents necessary to transfer title to real estate or co-op shares to ☐ Spouse 1 or ☐ Spouse 2 including, without limitation, an appropriate deed or other conveyance of title, and all other forms necessary to record such deed or other title documents (including satisfaction or refinance of any mortgage if necessary) to convey ownership of the property located at _____, no later than _____. Attach additional sheets if needed.

5. ☐ A separate Qualified Domestic Relations Order (QDRO) shall be issued at the same time this Judgment is entered or as soon as possible.
6. Settlement Agreement. (Fill in Box A or Box B, whichever applies)

   ☐ A. There is no Settlement Agreement entered into between the spouses.

   OR

   ☐ B. The Settlement Agreement entered into between the spouses on the _____ day of _____ ☐ an original or ☐ a transcript of which is on file with this Court and incorporated in this judgment by reference, shall survive and shall not be merged with this judgment, and the spouses are directed to comply with all legally enforceable terms and conditions of the Settlement Agreement as if its terms and conditions were stated in their entirety here.
7. The Joint Affidavit of Facts and Agreement entered into between the spouses simultaneously with this judgment is incorporated in this judgment by reference, shall survive and shall not be merged into this judgment, and the spouses are directed to comply with all legally enforceable terms and conditions of the Joint Affidavit and Agreement as if its terms and conditions were stated in their entirety here.
8. The Supreme Court shall retain jurisdiction to hear any applications to enforce the provisions of the Settlement Agreement, if any, or the Joint Affidavit of Facts and Agreement, or to enforce or modify the provisions of this judgment, provided the court retains jurisdiction of the matter concurrently with the Family Court for the purpose of specifically enforcing, such of the provisions of that Settlement Agreement, if any, or the Joint Affidavit of Facts and Agreement, as are capable of specific enforcement, to the extent permitted by law and of modifying such judgment with respect to maintenance, support, custody or visitation to the extent permitted by law, or both.
9. Any applications brought in Supreme Court to enforce the provisions of the Settlement Agreement, if any, or the Joint Affidavit of Facts and Agreement, or to enforce or modify the provisions of this Judgment, shall be brought in a County wherein one of the parties reside; provided that if there are minor children of the marriage, such applications shall be brought in a County wherein one of the parties

or the child or children reside, except, in the discretion of the judge, for good cause. Good cause applications shall be made by motion or order to show cause. Where the address of either party and any child or children is unknown and not a matter of public record, or is subject to an existing confidentiality order pursuant to DRL § 254 or FCA § 154-b, such applications may be brought in the County where the Judgment was entered.

10. ☐ Spouse 1 or ☐ Spouse 2 shall serve a copy of this Combined Findings of Fact, Conclusions of Law, and Judgment of Divorce with Notice of Entry on the other within 20 days after this Judgment is entered.
11. ☐ Spouse 1 is authorized to use the former last name _____.
    ☐ Spouse 2 is authorized to use the former last name _____

Dated: _____ ENTER:

_____
☐ J.S.C. ☐ JHO ☐ Referee

NOTE OF ISSUE - UNCONTESTED DIVORCE

For Use of Clerk

SUPREME COURT OF THE STATE OF NEW YORK

1 **COUNTY OF _____**

----------X

2

3 Index No.:

Plaintiff,

Calendar No.:

- against -

4

Defendant.

----------X

5 NO TRIAL

6 FILED BY: ❑ *Plaintiff* **OR** ❑ *Plaintiff's Attorney* **OR** ❑ *Defendant* **OR** ❑ *Defendant's Attorney*

7 DATE SUMMONS FILED: _____

8 DATE SUMMONS SERVED: _____

9 DATE ISSUE JOINED: **NOT JOINED -** ❑ ***Waiver*** **OR** ❑ ***Default*** **OR** ❑ ***Stipulation/Separation Agreement***

10 NATURE OF ACTION: **UNCONTESTED DIVORCE**

11 RELIEF: **ABSOLUTE DIVORCE**

12 ❑ *Plaintiff* **OR** ❑ *Attorney(s) for Plaintiff*
Office and P.O. Address:

Phone No.:
Fax No.:

13 ❑ *Defendant* **OR** ❑ *Attorney(s) for Defendant*
Office and P.O. Address:

Phone No.:
Fax No.:

UD-13
(rev. 12/16/2024)

UNCONTESTED MATRIMONIAL
REQUEST FOR JUDICIAL INTERVENTION

_____ COURT, COUNTY OF _____

Index No: _____ Date Index Issued: ____/____/_____

For Court Use Only:
IAS Entry Date
Judge Assigned
RJI Filed Date

CAPTION: Enter the complete case caption. Do not use et al or et ano.

Plaintiff

-against-

Defendant

STATUS OF ACTION OR PROCEEDING: Answer YES or NO for every question and enter additional information where indicated.

	YES	NO	
Has a summons and complaint or summons with notice been filed?	☐	☐	If yes, date filed: ____/____/_____
Has a summons and complaint or summons with notice been served?	☐	☐	If yes, date served: ____/____/_____
Are there children of the marriage under the age of 18?	☐	☐	If yes, complete and attach the **MATRIMONIAL RJI Addendum (UCS-840M)**.

NATURE OF JUDICIAL INTERVENTION (check all that apply):

☐ Note of Issue (***NOTE:*** *Check this box if you are filing for an Uncontested Divorce and are submitting the required forms/documents.*)

☐ Waiver of Court Costs, Fees, and Expenses

☐ Ex Parte Application for Alternate Service

☐ Other (specify): _____

PARTIES: If a party does not have an attorney, check the "Un-Rep" box and enter the party's address, phone and email.

Un-Rep	Parties List party names.	Attorneys and/or Unrepresented Litigants Provide attorney name, firm name, business address, phone number and email address. For unrepresented parties, provide party's address, phone number and email address.	Issue Joined (Y/N):
☐	**Role: PLAINTIFF** Last Name First Name Middle Name Suffix	First Name Last Name Firm Name (if applicable) Street Address City State Zip Phone Email	N/A
☐	**Role: DEFENDANT** Last Name First Name Middle Name Suffix	First Name Last Name Firm Name (if applicable) Street Address City State Zip Phone Email	☐ YES ☐ NO

RELATED CASES: List any related cases, include any related criminal or Family Court cases. If none, leave blank.

Case Title	Index/Case Number	Court	Judge (if assigned)	Relationship to instant case

I AFFIRM UNDER THE PENALTY OF PERJURY THAT, TO MY KNOWLEDGE, THERE ARE NO OTHER RELATED ACTIONS OR PROCEEDINGS, EXCEPT AS NOTED ABOVE, NOR HAS A REQUEST FOR JUDICIAL INTERVENTION BEEN PREVIOUSLY FILED IN THIS ACTION OR PROCEEDING.

Dated: _____/_____/_____ _____

Signature

_____ _____

Attorney Registration Number **Print Name**

LOCAL INDEX NUMBER

STATE FILE NUMBER

New York State Department of Health
CERTIFICATE OF DISSOLUTION OF MARRIAGE

TYPE, OR PRINT IN PERMANENT BLACK INK

Wife/Husband/Spouse

1A. NAME: FIRST MIDDLE LAST | 1B. BIRTH NAME, IF DIFFERENT | 1C. SOCIAL SECURITY NUMBER

2A. DATE OF BIRTH Month Day Year | 2B. STATE OF BIRTH (COUNTRY IF NOT USA) | 3. SEX (Optional) | 4A. RESIDENCE: STATE | 4B. COUNTY | 4C. LOCALITY (CHECK ONE AND SPECIFY) ☐ CITY OF ☐ TOWN OF ☐ VILLAGE OF

4 ___ 4D. STREET AND NUMBER OF RESIDENCE (INCLUDE ZIP CODE) | 4E. IF CITY OR VILLAGE, IS RESIDENCE WITHIN CITY OR VILLAGE LIMITS? YES ☐ NO ☐ IF NO, SPECIFY TOWN:

5A. ATTORNEY - NAME | 5B. ADDRESS (INCLUDE ZIP CODE)

Wife/Husband/Spouse

6A. NAME: FIRST MIDDLE LAST | 6B. BIRTH NAME, IF DIFFERENT | 6C. SOCIAL SECURITY NUMBER

9 ___ 7A. DATE OF BIRTH Month Day Year | 7B. STATE OF BIRTH (COUNTRY IF NOT USA) | 8. SEX (Optional) | 9A. RESIDENCE: STATE | 9B. COUNTY | 9C. LOCALITY (CHECK ONE AND SPECIFY) ☐ CITY OF ☐ TOWN OF ☐ VILLAGE OF

9D. STREET AND NUMBER OF RESIDENCE (INCLUDE ZIP CODE) | 9E. IF CITY OR VILLAGE, IS RESIDENCE WITHIN CITY OR VILLAGE LIMITS? YES ☐ NO ☐ IF NO, SPECIFY TOWN:

10A. ATTORNEY - NAME | 10B. ADDRESS (INCLUDE ZIP CODE)

11 ___ 11A. PLACE OF THIS MARRIAGE - CITY, TOWN OR VILLAGE | 11B. COUNTY | 11C. STATE (COUNTRY IF NOT USA)

12A. DATE OF THIS MARRIAGE Month Day Year | 12B. APPROXIMATE DATE COUPLE SEPARATED Month Year | 13A. NUMBER OF CHILDREN EVER BORN ALIVE OF THIS MARRIAGE (SPECIFY) | 13B. NUMBER OF CHILDREN UNDER 18 IN THIS FAMILY (SPECIFY)

DECREE

15 ___ 14A. I CERTIFY THAT A DECREE OF DISSOLUTION OF THE ABOVE MARRIAGE WAS RENDERED ON Month Day Year | 14B. DATE OF ENTRY: Month Day Year | 14C. TYPE OF DECREE - DIVORCE, ANNULMENT, OTHER DISSOLUTION (SPECIFY)

14D. COUNTY OF DECREE | 14E. TITLE OF COURT

23 ___ 14F. SIGNATURE OF COUNTY CLERK >

CONFIDENTIAL INFORMATION

Wife/Husband/Spouse

24 ___ 15. RACE: WHITE, BLACK, AMERICAN INDIAN, OTHER (SPECIFY) | 16. NUMBER OF THIS MARRIAGE - FIRST, SECOND, ETC. (SPECIFY) | 17. IF PREVIOUSLY MARRIED HOW MANY ENDED BY A. DEATH NUMBER ____ NONE ☐ B. DIVORCE OR ANNULMENT NUMBER ____ NONE ☐ | 18. EDUCATION: INDICATE HIGHEST GRADE COMPLETED ONLY ELEMENTARY 0 1 2 3 4 5 6 7 8 (00 01 02 03 04 05 06 07 08) HIGH SCHOOL 1 2 3 4 (09 10 11 12) COLLEGE 1 2 3 4 5+ (13 14 15 16 17)

Wife/Husband/Spouse

25 ___ 19. RACE: WHITE, BLACK, AMERICAN INDIAN, OTHER (SPECIFY) | 20. NUMBER OF THIS MARRIAGE - FIRST, SECOND, ETC. (SPECIFY) | 21. IF PREVIOUSLY MARRIED HOW MANY ENDED BY A. DEATH NUMBER ____ NONE ☐ B. DIVORCE OR ANNULMENT NUMBER ____ NONE ☐ | 22. EDUCATION: INDICATE HIGHEST GRADE COMPLETED ONLY ELEMENTARY 0 1 2 3 4 5 6 7 8 (00 01 02 03 04 05 06 07 08) HIGH SCHOOL 1 2 3 4 (09 10 11 12) COLLEGE 1 2 3 4 5+ (13 14 15 16 17)

QR ___ 23. PLAINTIFF: | 24. DECREE GRANTED TO: | 25. LEGAL GROUNDS FOR DECREE (SPECIFY)

QS ___ 26. SIGNATURE OF PERSON PREPARING CERTIFICATE > ATTORNEY AT LAW

NOTE: Social Security Numbers of the parties to the marriage are mandatory. They are required by New York State Public Health Law Section 4139 and 42 U.S.C. 666(a). They may be used for child support enforcement purposes.

Notification Letter or Postcard

New York State Supreme Court, _____ County
County where case is filed

Re: Uncontested Joint Divorce case:

_____ and _____
Name of Spouse 1 Name of Spouse 2

Index No.: _____

☐ There is a problem with your divorce papers. Please go to the Court Clerk's Office to review papers for corrections. Bring a new self-addressed stamped envelope with you.

☐ Judgment of Divorce signed _____. You may go to the County Clerk's Office to get a certified copy of the judgment. Bring photo identification with you.

☐ Judgment of Divorce signed. Please call _____ for instructions on how to get your papers for filing with the County Clerk's Office.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF _____

Index No.: _____

_____
Plaintiff / Spouse 1,

– and –

NOTICE OF ENTRY

_____
Defendant / Spouse 2.

PLEASE TAKE NOTICE that the attached is a true copy of a judgment of divorce in this matter that was entered in the Office of the County Clerk of _____
County where filed

County, on _____.
Stamped date of entry

Dated: _____

_____
Signature

☐ Spouse 1 OR ☐ Spouse 1's Attorney
☐ Spouse 2 OR ☐ Spouse 2's Attorney
Address:
_____
_____
_____

TO:
☐ Spouse 1 OR ☐ Spouse 1's Attorney
☐ Spouse 2 OR ☐ Spouse 2's Attorney
Address:
_____
_____
_____

STATE OF NEW YORK SUPREME COURT
COUNTY OF _____
==========

Index No.
RJI No.:

,
Plaintiff,

AFFIRMATION OF SERVICE BY MAIL OF JUDGMENT OF DIVORCE WITH NOTICE OF ENTRY

- against -

,
Defendant.
==========

STATE OF NEW YORK)
) SS.:
COUNTY OF _____)

_____, residing at _____, says, I am not a party to the action, and am over 18 years of age.

On _____, I served a copy of the Judgment of Divorce with Notice of Entry upon the Defendant by mailing a true copy of such papers enclosed and properly sealed in an envelope which I deposited in an official United States Post Office depository under the exclusive care and custody of the United States Postal Service addressed to:

_____

_____

_____.

Print Name: _____

I , _____(print or type name), affirm this ___ day of _____, ____, under the penalties of perjury, under the laws of New York, which may include a fine or imprisonment, that the foregoing is true, except as to matters alleged on information and belief and as to those matters I believe it to be true, and I understand that this document may be filed in an action or proceeding in a court of law.

_____
Server's Signature

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF _____

Index No.: _____

_____
Plaintiff / Spouse 1,

– and –

AFFIRMATION OF SERVICE BY MAIL

_____
Defendant / Spouse 2.

STATE OF _____}
ss:
COUNTY OF _____}

_____, says:
Name of Server

1. I am not a party to the action and am over 18 years of age. I live at:

_____.
Street address City State Zip code

2. On _____, I served a true copy of the following attached papers,
Date

☐ Income Withholding Order ☐ Qualified Medical Child Support Order

☐ Support Collection Unit Information Sheet, Application for Child Support Services, and Combined Findings of Fact, Conclusions of Law and Judgment of Divorce

On _____,
Name of Person/Company Served

by mail, depositing a true copy thereof enclosed in a post-paid wrapper, in an official depository under the exclusive care and custody of the U.S. Postal Service within New York State, to the address designated by the Defendant.

_____.
Address where mailed: Street address City State Zip

I , _____(print or type name), affirm this ___ day of _____, ____, under the penalties of perjury, under the laws of New York, which may include a fine or imprisonment, that the foregoing is true, except as to matters alleged on information and belief and as to those matters I believe it to be true, and I understand that this document may be filed in an action or proceeding in a court of law.

_____
(Server's Signature)

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF _____

Index No.: _____

_____
Plaintiff / Spouse 1,

– and –

AFFIRMATION OF SERVICE BY PERSONAL DELIVERY

_____
Defendant / Spouse 2.

STATE OF _____}
ss:
COUNTY OF _____}

_____, being duly sworn, says:
Name of Server

1. I am not a party to the action and am over 18 years of age. I live at:

_____.
Street address City State Zip code

2. On _____, I served a true copy of the following attached papers,
Date

☐ Income Withholding Order ☐ Qualified Medical Child Support Order

☐ Support Collection Unit Information Sheet, Application for Child Support Services, and Combined Findings of Fact, Conclusions of Law and Judgment of Divorce

by delivering the papers to _____, at
Name of Person/Company Served

_____.
Address where delivered: Street address City State Zip code

Description of Individual Served: (fill in applicable information); My perception of the individual served is:

Gender _____ Race: _____ Color of Hair: _____

Approximate Age: _____ Approximate Weight: _____ Approximate Height: _____

Other Identifying Features: _____

Dated:_____

I , _____(print or type name), affirm this ___ day of _____, ____, under the penalties of perjury, under the laws of New York, which may include a fine or imprisonment, that the foregoing is true, except as to matters alleged on information and belief and as to those matters I believe it to be true, and I understand that this document may be filed in an action or proceeding in a court of law.

_____
Server's Signature